

25TRCP00533 25TRCP00533

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-15

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Case Number: 25TRCP00533 Hearing Date: July 15, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

Doris

Bennett, an individual

Plaintiffs,

Case No.:

25TRCP00533

vs.

[Tentative]

Overruled/denied

Igor

Fradkin, an individual

Defendants.

Hearing

Date: July
15, 2026

Moving Parties: Defendant Igor Fradkin

Responding Party: Plaintiff Doris Bennett

HEARING: Demurrer with MTS

The Court considered the moving,
opposition, and reply papers.

RULING

The Court overrules the Demurrer and
denies the Motion to Strike.

BACKGROUND

On December 17, 2025, Plaintiff
Doris Benett filed the Petition to Correct Arbitration Award.

On May 29, 2026, Defendant filed the
Demurrer and Motion to Strike.

On June 3, 2026, Plaintiff filed the
Opposition.

On July 6, 2026, Defendant filed the
Reply.

LEGAL STANDARD

A demurrer can be
used only to challenge defects that appear on the face of the pleading under
attack or from matters outside the pleading that are judicially noticeable. (Blank
v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint
need only allege facts sufficient to state a cause of action; each evidentiary
fact that might eventually form part of the plaintiff's proof need not be
alleged." (C.A. v. William S. Hart Union High School Dist. (2012))

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

Here, Defendant has failed to provide a meet and confer declaration. However, as Plaintiff has filed a substantive Opposition, the Court finds that Plaintiff has not been prejudiced.

Defendant demurs to the Petition.

Defendant argues

Plaintiff's petition fails as a matter of law because it improperly relies on a fee arbitration award that is expressly rendered inadmissible and without preclusive effect under the Mandatory Fee Arbitration Act.

Defendant contends that

Business and Professions Code section 6204, subdivision (e), expressly provides that, where a party elects to proceed to trial following arbitration, the arbitration award shall not be admissible or operate as collateral estoppel or res judicata in any subsequent action or proceeding. Defendant argues that courts interpreting the Mandatory Fee Arbitration Act consistently enforce this limitation, contending that subsequent proceedings are de novo and entirely independent of the rejected arbitration determination. Defendant further argues that because the arbitration award is legally inadmissible and without preclusive value, Plaintiff cannot rely upon it to establish any element of a cause of action or theory of liability, and that allegations founded upon legally ineffective matter are insufficient to sustain a valid pleading as a matter of law.

“Except as provided in this section, the award and determinations of the arbitrators shall not be admissible nor operate as collateral estoppel or res judicata in any action or proceeding.” (Bus. & Prof. Code, § 6204, subd. (e).) Thus, the arbitration award would be inadmissible as the trial is de novo. (*Giorgianni v. Crowley* (2011) 197 Cal.App.4th 1462, 1473.) However, whether evidence is admissible is not a proper issue on demurrer, as a Demurrer looks only to the face of the pleadings, not to whether the evidence supporting the pleading is sufficient or admissible. (*Tyree v. Epstein* (1950) 99 Cal.App.2d 361,364 [“There is statutory and traditional procedure for testing the sufficiency of a complaint on demurrer. It does not encompass the consideration by the court of evidentiary matters”].) Thus, Defendant has not met his burden of showing that the Petition fails to state a claim. Furthermore, Defendant’s Motion to Strike relies on the same grounds.

Therefore, the Court overrules the Demurrer and denies the Motion to Strike.